

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Sergio Guerra	Team: Squad #10	CCRB Case #: 201410337	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Friday, 09/19/2014 9:40 AM	Location of Incident: § 87(2)(b)	18 Mo. SOL 3/19/2016	Precinct: 30		
Date/Time CV Reported Wed, 10/08/2014 2:36 PM	CV Reported At: CCRB	How CV Reported: On-line website	Date/Time Received at CCRB Wed, 10/08/2014 2:38 PM		

Complainant/Victim	Type	Home Address
§ 87(2)(b)	§ 87(2)(b)	§ 87(2)(b)

Subject Officer(s)	Shield	TaxID	Command
1. DT3 Corey Gresko	1660	932745	WARRSEC
2. DT3 Kevin Dardzinski	06459	936428	WARRSEC
3. DT2 Francisco Pena	03923	910291	WARRSEC
4. DT3 Matthew Murphy	3752	930804	WARRSEC

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. LT John Hawthorne	00000	919161	WARRSEC
2. SGT John Albertelli	03235	910972	WARRSEC

Officer(s)	Allegation	Investigator Recommendation
A . DT2 Francisco Pena	Abuse: Det. Francisco Pena entered and searched § 87(2)(b) in Manhattan.	A . Substantiated
B . DT2 Francisco Pena	Abuse: At § 87(2)(b) in Manhattan, Det. Francisco Pena drew his gun.	B . Unsubstantiated
C . DT2 Francisco Pena	Abuse: At § 87(2)(b) in Manhattan, Det. Francisco Pena refused to provide his name and shield number to § 87(2)(b)	C . Unsubstantiated
D . DT3 Corey Gresko	Abuse: At § 87(2)(b) in Manhattan, Det. Corey Gresko refused to provide his name and shield number to § 87(2)(b)	D . Unsubstantiated
E . DT3 Kevin Dardzinski	Abuse: At § 87(2)(b) in Manhattan, Det. Kevin Dardzinski refused to provide his name and shield number to § 87(2)(b)	E . Unsubstantiated
§ 87(4-b) § 87(2)(g)	§ 87(2)(b)	§ 87(2)(b)

Case Summary

As per § 87(2)(b) on September 19, 2014, at approximately 9:40 a.m., officers rang her doorbell at § 87(2)(b), in § 87(2)(b). Through the door, the officers stated that they were looking for § 87(2)(b) on a warrant. She informed them that the § 87(2)(b) "she knew did not have that last name or a warrant. The officers banged on the door and requested that they be let in, but she refused. After 15 minutes, an officer instructed her to lie on the floor, still speaking through the door. Fearing that she could be shot, she moved to the kitchen and sat in a chair. After 40 minutes to an hour, the officers were able to break-in, kicking the door and using an instrument to pry it open. Det. Francisco Pena, the lead officer on the case, entered into the apartment, followed by Det. Corey Gresko and Det. Kevin Dardzinski (**Allegation A**). Upon entry, Det. Pena allegedly had his gun drawn (**Allegation B**). Addressing the officers generally, § 87(2)(b) asked for their names and shield numbers. Det. Dardzinski allegedly provided a fake name, stating he was "Officer Smith," while the other two did not respond (**Allegations C, D, and E**). Det. Pena and Det. Gresko searched the apartment, including inside a dresser too small to hold a person, while Det. Dardzinski waited in the living room. After 20 minutes, the officers could not locate § 87(2)(b) and exited (encl. 12b-12c). § 87(2)(b) was arrested on September 13, 2014 for a prior assault (encl. 22a-22b). § 87(2)(g)

Video footage was obtained of 6 officers entering the building (encl. 8a-9i).

Mediation, Civil, and Criminal Histories

This case was not eligible for mediation due to a Notice of Claim received by the City of New York on § 87(2)(b) (encl. 28a-28d). The 50H hearing was held on § 87(2)(b) (encl. 28e-28aa).

Civilian and Officer CCRB Histories

- This is the third CCRB complaint filed by § 87(2)(b) § 87(2)(b)
- Det. Francisco Pena has been a member of the NYPD for 27 years. He has had seven previous CCRB cases with eight allegations, § 87(2)(g). In CCRB # 9802591, force and person search allegations were substantiated, with charges recommended (encl. 4).
- Det. Corey Gresko has been a member of the NYPD for 11 years. He has had three previous CCRB cases with eleven allegations including premises entered and/or searched, search of person, and name/shield number refusal, none of which were substantiated (encl. 5).
- Det. Kevin Dardzinski has been a member of the NYPD for 10 years. He has had three previous CCRB cases with three allegations including premises entered and/or searched and gun drawn, none of which were substantiated (encl. 6).

Findings and Recommendations

Explanation of Subject Officer Identification

§ 87(2)(b) alleged that three officers entered her apartment at § 87(2)(b) with PO1 and PO3 searching it, while PO2 waited in the living room. PO1 allegedly drew his gun. PO1 and PO3 also allegedly failed to provide their names and shield numbers, while PO2 allegedly stated that his name was "Officer Smith." PO1 was described as a Hispanic male in his mid-30s, 5'8", 175 pounds, muscular build, and bald. PO2 was described as a White male in his early-30s, 5'11", medium build, greyish-blue eyes, dusty dark brown hair, and a "tom-boy" style haircut. PO3 was described as a White male in his early-30s, 5'10", 170 pounds, slim build, hazel eyes, and dark, low-cut hair (encl. 12b-12c).

Det. Francisco Pena, the only bald Hispanic officer on the scene, identified himself as PO1 in the video footage provide by the management company of § 87(2)(b). He also acknowledged being the lead officer on the case, conducting the necessary checks, including for warrants, and entering and searching § 87(2)(b)'s apartment (encl. 9a-9b; 13d-13g).

§ 87(2)(b)'s descriptions were not detailed enough to identify PO2 and PO3 from the video or MOS photographs (encl. 12b). However, Det. Corey Gresko acknowledged being told by Det. Pena that he had an arrest warrant for the case, and entering and searching her apartment as a result. He also acknowledged providing his name and shield number to § 87(2)(b) (encl. 14e-14g). Det. Kevin Dardzinski acknowledged that Det. Pena and Det. Gresko entered and searched the apartment while he stood at the threshold of the door. He also stated that Lt. John Hawthorne never entered the apartment, which Lt. Hawthorne confirmed and the video footage appeared to support (encl. 16e-16g; 17d-17f).

§ 87(2)(g)

§ 87(2)(g)

Allegations not pleaded

Det. Francisco Pena acknowledged that he was the lead officer on the case and stated that he conducted all of the necessary checks before arriving at the incident location (encl. 13d-13e). Thus, Det. Corey Gresko and Det. Kevin Dardzinski were acting on information that Det. Pena provided them, believing that the arrest warrant for § 87(2)(b) was still valid (encl. 14e; 17d) § 87(2)(g)

§ 87(2)(g)

Recommendations

Allegation A: Abuse-Det. Francisco Pena entered and searched § 87(2)(b)

It is undisputed that Det. Francisco Pena entered and searched § 87(2)(b)'s apartment. § 87(2)(g)

During § 87(2)(b)'s CCRB interview, she stated that through the door of her apartment, officers asked her about § 87(2)(b) stating that they had a warrant for him. She refused to open the door. After continuously banging on the door, the officers were able to enter 40 minutes to an hour later, using a screwdriver and their feet to kick it open. Det. Francisco Pena, Det. Corey Gresko, and Det. Kevin Dardzinski entered. As Det. Dardzinski waited in the living room, Det. Pena and Det. Gresko searched the apartment. After 20 minutes, the officers exited (encl. 12b-12c).

During Det. Francisco Pena's CCRB interview, he stated that he and Det. Gresko went to § 87(2)(b), in regards to an arrest warrant for § 87(2)(b). After hearing a conversation inside between two people and knocking, a male voice stated, "Who?" They stated "Police" but the apartment went silent. Over approximately 30 minutes, the officers knocked, banged, and kicked at the door. Eventually, § 87(2)(b) opened it, immediately walked away, and sat down. Det. Pena led the entry, but could not recall who entered with him. When asked if § 87(2)(b) provided permission to enter, Det. Pena stated, "Well I had a warrant" and "We didn't talk," interpreting her actions as permission. They searched the apartment, but did not find § 87(2)(b) and exited. On the warrant, § 87(2)(b)'s address was § 87(2)(b) in Brooklyn, but as the lead officer, Det. Pena went to the incident location because § 87(2)(b) had a domestic incident at § 87(2)(b)'s apartment on August 21, 2014 and committed an assault in Manhattan on September 6, 2014 (encl. 20a-20f; 21a-22b). Det. Pena did an ADW and CRIMS check the day of the incident, which showed the warrant was active and that § 87(2)(b) was not in the correctional system. Det. Pena was also aware of an active I-Card. On September 18, 2014, results of an HRA/benefits check were received, showing § 87(2)(b)'s address as § 87(2)(b). Det. Pena stated that he was not notified of § 87(2)(b)'s arrest until after the incident date (encl. 13d-13f; 24j). However, despite his statement, the investigation determined that § 87(2)(b) was arraigned on the warrant on September 14, 2014, five days prior to the entry into § 87(2)(b)'s apartment, § 87(2)(b)

§ 87(2)(b) [§§ 86(1)(3)&(4)] [§ 87(2)(c)] (encl. 19a-19b) Additionally, although Det. Pena stated that § 87(2)(b) had a previous domestic incident on August 21, 2014 at § 87(2)(b)'s apartment, the latest domestic incident report from that date lists § 87(2)(b)'s address as § 87(2)(b) in Brooklyn. The living situation status is listed as, "lived together in the past." (encl. 20e-20f).

During Det. Corey Gresko's CCRB interview, he stated that after he and Det. Pena knocked on the door and a male responded, "Who," they identified themselves, but all noise ceased. They knocked and kicked until § 87(2)(b) verbally stated, "Who's there?" They repeated themselves but there was no answer. He acknowledged that they kicked and hit the door to get the attention of those inside, stating that the louder one knocks, the more likely it is the occupant will get nervous, relent, and eventually open the door. After approximately 30 minutes, § 87(2)(b) opened the door, standing next to it. Without speaking to her, they immediately entered and searched the apartment. He was unsure if she gave permission to enter and did not recall who entered with them. They did not find § 87(2)(b) and exited. Det. Gresko acknowledged not having specific knowledge that § 87(2)(b) would be at the location at that time, stating they went to the location because of his previous domestic incidents. Det. Pena was the lead officer, so Det. Gresko was unaware of the particulars of the investigation, including the searches conducted to determine § 87(2)(b) address (encl. 14e-14g).

During Det. Kevin Dardzinski's CCRB interview, he stated that he was told that after Det. Pena and Det. Gresko knocked on the door, someone responded, "Who," but did not know if it was a male voice or if they had reason to believe the suspect was at that location at that time. He guarded the staircase, able to see both officers knocking on the door. He did not know who responded or what was said. After a brief period, the door was opened from the inside, although he did not make any observations of § 87(2)(b) inside of the apartment or hear her make any statements. He did not recall if the officers asked for consent to enter. When they entered and searched, Det. Dardzinski stood guard at the door. They exited after not finding § 87(2)(b) (encl. 17d-17f).

During Lt. John Hawthorne's CCRB interview, he stated that he was told Det. Pena and Det. Gresko were at the address because the suspect had been connected to it through domestic incidents and that a male inside had stated, "Who?" While conducting exterior security, he received communication that they had entered the apartment and the suspect was not there. He did not know if permission was given to enter, if consent was provided to search, or if the address matched the warrant (encl. 16e-16g).

Sgt. John Albertelli and Det. Matthew Murphy were assigned to outdoor perimeter security, and thus did not observe the entry and search of § 87(2)(b)'s apartment (encl. 15e-15f; 18d-18e).

The video footage provided by building management corroborates the timeframe provided by § 87(2)(b) with Det. Pena and Det. Gresko entering at 9:30 a.m. and all officers having left by 10:18 a.m. Additionally, at 9:30 a.m. Det. Gresko can be seen using what appears to be a screwdriver or a similar tool in an attempt to pry open the front door of the building, while Det. Dardzinski and Sgt. Albertelli can be seen using a similar tool on the front door of the building at 10:04 a.m. (encl. 8a-8c)

Based on Det. Pena's DD5s, a check on the status of § 87(2)(b) warrant and most recent arrest was conducted on September 12, 2014 (encl. 24g). However, despite Det. Pena testifying that on the day of the incident § 87(2)(b) had an open warrant issued on July 25, 2013 for § 87(2)(b), Det. Pena's DD5s state that the ADW check showed no active warrant for § 87(2)(b) (encl. 13e; 24g). In regards to the active I-Card, it does not permit officers to enter the premises of a subject without consent or absent exigent circumstances (encl. 1a-1d).

Additionally, based on Det. Pena's DD5s, the warrant check was conducted on September 12, 2014, a full week before the incident. Information contained in a warrant must be verified by basic inquiries and should be of a relatively recent vintage. People v. Fakoya, 901 N.Y.S.2d 909, Sup. Ct., Kings Cty. 2009 (encl. 2c). § 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

§ 87(2)(g)

acknowledged by Det. Gresko (encl. 13f; 14g). Case law has established that consent to search is voluntary when it is a true act of the will, incompatible with official coercion, actual or implicit. People v. Gonzalez and Gonzalez, 39 N.Y.2d 122 (1976) (encl. 3c-3d). § 87(2)(g)

§ 87(2)(g)

Thus, it is recommended that **Allegation A** be closed as **Substantiated**.

Allegation B: Abuse-At § 87(2)(b) in Manhattan, Det. Francisco Pena drew his gun.

It is in dispute whether Det. Francisco Pena drew his gun upon entering § 87(2)(b)'s apartment.

During § 87(2)(b)'s CCRB interview, she stated that upon entering into her apartment, Det. Francisco Pena allegedly had his gun drawn and held it by his side (encl. 12b).

During Det. Francisco Pena's CCRB interview, he stated that none of the officers took their gun out of the holster (encl. 13f).

During Det. Corey Gresko's CCRB interview, he stated that his gun was holstered throughout the entry and did not recall Det. Pena's gun being drawn (encl. 14f).

During Det. Kevin Dardzinski's CCRB interview, he stated that he did not draw his gun. § 87(2)(g)

Sgt. John Albertelli, Lt. John Hawthorne, and Det. Matthew Murphy did not observe Det. Pena draw his gun, as they were not present for the allegation (encl. 15f; 16f; 18e).

§ 87(2)(g)

Therefore, it is recommended that **Allegation B** be closed as **Unsubstantiated**.

Allegation C: Abuse-At § 87(2)(b), Det. Francisco Pena refused to provide his name and shield number to § 87(2)(b)

Allegation D: Abuse-At § 87(2)(b), Det. Corey Gresko refused to provide his name and shield number to § 87(2)(b)

Allegation E: Abuse-At § 87(2)(b), Det. Kevin Dardzinski refused to provide his name and shield number to § 87(2)(b)

§ 87(2)(g)

During § 87(2)(b)'s CCRB interview, she stated that as Det. Francisco Pena, Det. Corey Gresko, and Det. Kevin Dardzinski entered her apartment, she addressed them generally, asking for their names and shield numbers. In response, Det. Dardzinski allegedly stated that his name was "Officer Smith," while Det. Pena and Det. Gresko failed to respond (encl. 12b).

During Det. Francisco Pena's CCRB interview, he stated that he did not recall § 87(2)(b) ever asking the officers anything, including for their names and shield numbers. He did not say that his name was "Officer Smith" and did not hear any other officer make that statement. Upon entering, all officers had their shields out and visible (encl. 13f).

During Det. Corey Gresko's CCRB interview, he stated that as the officers were exiting, he recalled § 87(2)(b) asking for names and shield numbers. He did not know if she was addressing the group generally or speaking to anyone in specific. Det. Gresko provided his name and shield number, and believed the other officers did as well. He did not state that his name was "Officer Smith" and did not hear any other officers do so. Upon entering, all officers had their shields out and visible (encl. 14g).

During Det. Kevin Dardzinski's CCRB interview, he stated that Det. Gresko informed him that § 87(2)(b) asked for his name and shield number and he provided it. Det. Dardzinski was not asked for his name and shield number and did not hear the other officers being asked or stating that their name was "Officer Smith." The officers had their shields out and visible (encl. 17e).

Sgt. John Albertelli, Lt. John Hawthorne, and Det. Matthew Murphy did not hear the officers refuse to provide their names and shield numbers, as they were not present for the allegation (encl. 15f; 16f; 18e).

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

§ 87(2)(g) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED] Therefore, it is recommended that **Allegations C, D, and E** be closed as **Unsubstantiated**.

§ 87(2)(g), § 87(4-b) [REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]
[REDACTED]

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date